Popular Name	: Personal Liberty case
Related Topic/Issue	: Procedure established by law
Related Article/Schedule	: 21

Supreme Court Judgement: It overruled its earlier judgement delivered in the *A.K. Gopalan* case[10] (1950). It declared section 10(3)(c) of the Passport Act (1967) as not violative of Articles 14, 19(1)(a) or (g) and 21 and hence, valid. But, it laid down the following propositions: (a) Articles 14, 19 and 21 are not mutually exclusive which means that a law depriving a person of 'personal liberty' has not only to stand the test of Article 21 but it must also stand the test of Articles 14 and 19; (b) The expression 'personal liberty' in Article 21 is of the widest amplitude and it covers a variety of rights which go to constitute the personal liberty of a man and some of them have been raised to the status of distinct fundamental rights and given additional protection under Article 19; (c) The right to life under Article 21 includes all those aspects of life which go to make a man's life meaningful, complete and worth living. Further, the right to 'live' is not merely confined to physical existence but it includes within its ambit the right to live with human dignity; and (d) The expression 'procedure established by law' in Article 21 means that the procedure prescribed by law must be just, fair and reasonable and not arbitrary, fanciful or oppressive. In order that the procedure is just, fair and reasonable, the procedure should confirm to the principles of "natural justice".

Impact of the Judgement: By taking a wider interpretation of the Article 21, this judgement led to the following: (i) It introduced the American concept of 'due process of law' in Indian judicial interpretation; (ii) It firmly established the 'golden triangle' rule i.e., inter-relation of Articles 14, 19 and 21; and (iii) It expanded the scope of Article 21 and paved the way for declaring a number of rights as integral part of Article 21 in the subsequent cases.

Bachan Singh Case (1980)

Name of the Case	: Bachan Singh vs. State of Punjab
Year of Judgement	: 1980
Popular Name	: —
Related Topic/Issue	: Constitutional validity of death penalty
Related Article/Schedule	: 19 & 21

Supreme Court Judgement: It ruled that the provision of death penalty (capital punishment) in Section 302 of the Indian Penal Code, as an alternative punishment for murder, is not unreasonable. Hence, this provision does not violate the letter or the ethos of Article 19. It stated that Article 19(1) does not guarantee the activity of committing a murder. Further, it held that the provision of death penalty also does not violate Article 21. It observed that Article 21 recognises the right of the State to deprive a person of his life or personal liberty in accordance with fair, just and reasonable procedure established by a valid law. However, the court held that the death penalty for murder should be an exception rather than the rule. It said that this penalty must be confined to the 'rarest of rare cases', when the alternative option is unquestionably foreclosed. Further, it said that while making the choice of death penalty, the